

TENTATIVE RULINGS
LAW AND MOTION CALENDAR

Judge Nathan Vu

Department N15

Hearing Date and Time: March 4, 2024 @ 08:30 AM

TENTATIVE RULINGS: The court will endeavor to post tentative rulings on this website by 3:00 p.m. on the day before the hearing. However, ongoing proceedings may prevent posting by that time or the court may have no tentative ruling on a matter. If no tentative ruling is posted, the court will state whether and when one may be posted.

Once a tentative ruling has been posted, the court may not entertain requests for continuance and may not consider additional papers.

SUBMITTING: The court will hear oral argument regarding law and motion matters on the hearing date and time stated above. If you wish to submit on the tentative ruling and do not intend to appear at the hearing, please inform opposing counsel and the court clerk by electronic mail (n15@occourts.org) or by telephone (657) 622-5615).

If all parties submit on the tentative ruling or no parties or counsel appear for the hearing, then the tentative ruling shall become the final ruling. If all parties do not submit, the court will hear oral argument on the hearing date.

APPEARANCES: Parties and counsel may appear at the law and motion hearing in-person or via Zoom. Persons appearing in-person shall come to Department N15 at the North Justice Center, 1275 N. Berkeley Avenue, Fullerton, CA 92832.

Persons appearing remotely must check-in online through the court's website at <https://www.occourts.org/general-information/covid-19-response/civil-covid-19-response/civil-remote-hearings> and then clicking on the button entitled "Department N15 Judge Nathan Vu".

Anyone having difficulty appearing remotely may contact the court clerk at (657) 622-5615.

All persons appearing remotely must abide by all applicable laws and rules. **This includes obtaining, testing the functionality of, and learning how to use the Zoom application and all necessary audio and video equipment prior to the remote hearing.** More information is available at <https://www.occourts.org/media-relations/civil.html>.

COURT REPORTERS: Court reporters employed by the court are NOT normally provided for law and motion matters in civil courtrooms. If a party desires a record of a law and motion proceeding, it is the party's responsibility to arrange for a privately-retained court reporter, who may appear in-person or remotely. Parties must comply with the Court's policy on the use of privately-retained court reporters, available at https://www.occourts.org/media/pdf/Private_Retained_Court_Reporter_Policy.pdf.

1	Castellanos vs. CR&R Environmental Services 30-2023-01318824	<u>Motion to Compel Arbitration</u> Pursuant to Defendant's Notice of Withdrawal of Defendant's Motion to Compel Arbitration and for Dismissal of the Action, or Alternatively, for Stay of the Action Pending Arbitration filed February 16, 2024, (ROA #50), this matter is taken OFF CALENDAR. The court is in receipt of the Joint Stipulation to Stay Action and Submit to Binding Arbitration filed February 16, 2024, (ROA #52). However, the Joint Stipulation is incomplete as it contains no stipulations nor does it include a proposed order. The parties are informed that there is no court order staying the action nor is there a court order that the matter be arbitrated. The parties must submit a complete Joint Stipulation and proposed order if they wish to stay the action and submit the matter to arbitration. The court clerk shall give notice of this ruling.
2	Cliq, Inc. vs. Capital Managers, LLC 30-2021-01220754	<u>Motion to Compel Discovery</u> Pursuant to Cliq's Notice of Withdrawal of Motion to Compel Third-Party Reuven Cyper's Compliance with Deposition Subpoena for Production of Business Records filed February 5, 2024, (ROA #609), this matter is taken OFF CALENDAR.
3	Galasso vs. Maya Linda II, LLC 30-2022-01268325	<u>Motions to Compel Discovery</u> Plaintiff Sharon Galasso's Motion to Compel Defendant Maya Linda II, LLC's Further Responses to Form Interrogatories – General is GRANTED. Plaintiff Sharon Galasso's Motion to Compel Defendant Maya Linda II, LLC's Further Responses to Requests for Admission is GRANTED. Defendant Maya Linda II, LLC is ORDERED to serve full, complete, and verified responses to Form Interrogatories – General Numbers 4.1, 4.2, and 15.1, and Request for Admission Number 34, within 21 days of service of the notice of ruling. Defendant Maya Linda II, LLC is ORDERED to pay

		to Plaintiff Sharon Galasso sanctions in the amount of \$2,495 (1.0 hours x \$500 per hour and 5.0 hours x \$375 per hour in reasonable attorney's fees and \$120 in motion filing fees) within 21 days of service of the notice of ruling. Plaintiff Sharon Galasso (Plaintiff Galasso) moves to compel further responses from Defendant Maya Linda II, LLC (Defendant Maya Linda II) to Form Interrogatories – General Numbers 4.1, 4.2, and 15.1, and Requests for Admission Set One, Number 34. <u>Standard to Compel Further Responses to Interrogatories</u> The Civil Procedure Code instructs that: (a) Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits. (b) If an interrogatory cannot be answered completely, it shall be answered to the extent possible. (c) If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party. (Code Civ. Proc., § 2030.220) In addition, "[p]arties must state the truth, the whole truth, and nothing but the truth in answering written interrogatories." (<i>Scheidig v. Dinwiddie Const. Co.</i> (1999) 69 Cal.App.4th 64, 76; see Code Civ. Proc., § 2023.010, subd. (f) [making evasive response to discovery is misuse of discovery process].) Where the question is specific and explicit, it is improper to provide only a portion of the information sought or "deftly worded conclusionary answers designed to evade a series
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		of explicit questions.” (<i>Deyo v. Kilbourne</i> (1978) 84 Cal.App.3d 771, 783.) “If a person cannot furnish details, he should set forth the efforts made to secure the information. He cannot plead ignorance to information which can be obtained from sources under his control.” (<i>Id.</i> at p. 782.) A responding party may properly refer to documents instead of providing a complete and straightforward answer to an interrogatory only in those cases where the interrogatory seeks information contained in so many records and files that responding to the interrogatory would necessitate making a compilation or summary of the information contained in the records and the burden or expense of preparing or making it would be substantially the same for the party propounding the interrogatory as for the responding party. (Code Civ. Proc., § 2030.230.) In order to utilize this code section, the interrogatory response must refer to Section 2030.230. (<i>Ibid.</i>) In addition, the response must specify the writings from which the answer may be derived or ascertained and “[t]his specification shall be in sufficient detail to permit the propounding party to locate and to identify, as readily as the responding party can, the documents from which the answer may be ascertained. The responding party shall then afford to the propounding party a reasonable opportunity to examine, audit, or inspect these documents and to make copies, compilations, abstracts, or summaries of them.” (<i>Ibid.</i>) Once a party has received responses to its interrogatories, the party may move for an order compelling further responses on the grounds that: (1) an answer to a particular interrogatory is evasive or incomplete; (2) an exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate; or (3) an objection to an interrogatory is without merit or too general. (Code Civ. Proc., § 2030.300, subd. (a).) A motion to compel further responses must be served within 45 days after service of a verified response. (Code Civ. Proc., § 2033.290, subd. (c).)
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Standard to Compel Further Responses to Requests for Admission

The Civil Discovery Act requires that responses to requests for admission be "as complete and straightforward as the information reasonably available to the responding party permits." (Code Civ. Proc., § 2033.220, subd. (a).)

In addition, each response must:

- (1) Admit so much of the matter involved in the request as is true, either as expressed in the request itself or as reasonably and clearly qualified by the responding party.
- (2) Deny so much of the matter involved in the request as is untrue.
- (3) Specify so much of the matter involved in the request as to the truth of which the responding party lacks sufficient information or knowledge.

(Code Civ. Proc., § 2033.220, subd. (b).)

If a party has been served with responses to its requests for admission, the party may move for an order compelling further responses to requests for admissions on the grounds that: (1) an answer to a particular request is evasive or incomplete or (2) an objection to a particular request is without merit or too general. (Code Civ. Proc., § 2033.290, subd. (a).)

Form Interrogatories

In response to Form Interrogatories Numbers 4.1 and 4.2, Defendant Maya Linda II the same objections that the interrogatories were vague and ambiguous; that they were nonsensical because there was no accident, injury or other occurrence or breach of contract; and that the information sought was no relevant nor reasonable calculated to lead to the discovery of admissible evidence.

If a timely motion to compel has been filed, the burden is on the responding party to justify any objection or failure fully to answer the discovery requests. (*Coy v. Superior Court* (1962) 58 Cal.2d 210, 220-221; *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.)

		Here Plaintiff Galasso filed a timely motion to compel further response, (see Decl. of Jonathan D. Dykstra in Supp. of Pltf. Galasso's Mot. to Compel Def. Maya Linda II's Further Responses to Form Interrogatories – General (Dykstra Decl.), ¶ 8, Exh. 8), shifting the burden to Defendant Maya Linda II to justify its objections. Defendant Maya Linda II fails to justify its objections. Defendant Maya Linda contends that Form Interrogatories Numbers 4.1 and 4.2 "generally" apply to personal injury claims, but that does not preclude Defendant Maya Linda II from responding to those interrogatories. Defendant Maya Linda II also argues that the only insurance benefitting it is the policy of the management company Jamboree Management and documents relating to those policies have been delivered to Plaintiff Galasso. However, a party may answer an interrogatory by referring to documents only in those cases where the interrogatory seeks information contained in so many records and files that responding to the interrogatory would necessitate making a compilation or summary of the information contained in the records and the burden or expense of preparing or making it would be substantially the same for the party propounding the interrogatory as for the responding party. (See Code Civ. Proc., § 2030.230.) In addition, the interrogatory response must specify the writings from which the answer may be derived or ascertained and "[t]his specification shall be in sufficient detail to permit the propounding party to locate and to identify, as readily as the responding party can, the documents from which the answer may be ascertained. The responding party shall then afford to the propounding party a reasonable opportunity to examine, audit, or inspect these documents and to make copies, compilations, abstracts, or summaries of them." (<i>Ibid.</i>) Here, Defendant Maya Linda II makes no showing that answering Form Interrogatories Numbers 4.1 and 4.2 would require looking into so many documents or compiling so much information that the burden on Defendant Maya Linda II is equal to or outweighs the burden on Plaintiff Galasso. In
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		addition, Defendant Maya Linda II's responses do not specify the documents. In response to Form Interrogatories Number 15.1, Defendant Maya Linda II objected that the interrogatory was burdensome; oppressive; intended to harass, vex, and annoy; overboard; improper; sought information protected by the attorney-client privilege and the attorney work product doctrine; required proving a negative; vague; ambiguous; overbroad; and compound. Defendant Maya Linda II again fails to justify these objections. In any case, the court finds them all to be without merit. Defendant Maya Linda II also responded to stating that it had already responded to the Complaint; that its denials and defenses were based on documents, facts, and information available to it; that investigation and discovery were continuing; and that "the witnesses are all the members of Maya Linda II, LLC , whose names and addresses have been previously produced to Propounding Party." This response is evasive and incomplete, and therefore, fails to comply with the Civil Discovery Act. Defendant Maya Linda II argues that all of its documents are equally available to Plaintiff Galasso for inspection because Plaintiff Galasso is an owner of Defendant Maya Linda II. However, Defendant Maya Linda II fails to make the showing required to answer an interrogatory by referring to documents. In fact, Defendant Maya Linda II fails to provide sufficient evidence to show that Plaintiff Galasso has access to said documents. The court will grant the motion to compel further responses to the form interrogatories. <u>Requests for Admission</u> Request for Admission Number 34 requests that Defendant Maya Linda II "[a]dmit that the document attached hereto as Exhibit 'A' is A true and correct copy of the operative Operating Agreement for [Defendant Maya Linda II]." In response, Defendant Maya Linda II stated "Admit that Exhibit 'A' is an unsigned document titled Maya Linda II, LLC Limited Liability Company
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		Operating Agreement with a date of March 1, 2001. Discovery is ongoing.” Defendant Maya Linda II’s response was evasive as it neither admits nor denies the statement posed to it. A responding party may not change the call of the request for admission and respond to the changed request for admission. Defendant Maya Linda II also argues that Exhibit A attached to the Requests for Admission is not the authentic Operating Agreement. However, if this is the case, then Defendant Maya Linda II could have simply denied Request for Admission Number 34. The court will grant the motion to compel further responses to the request for admission. <u>Sanctions</u> The Civil Procedure Code requires the court to impose monetary sanctions against a party, person, or attorney who unsuccessfully makes or opposes a motion to compel further responses, “unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., §§ 2030.300, subd. (d), 2033.290 subd. (d).) A party’s sincere belief in its position is not sufficient to avoid sanctions. (See <i>Clement v. Alegre, supra</i>, 177 Cal.App.4th at pp. 1286-1287 [even if responding party did not intend to be evasive in its discovery responses, its intent is not relevant, as there is no requirement that misuse of discovery process be willful in order to impose sanctions].) Here, Defendant Maya Linda II unsuccessfully opposed both motions to compel further responses and did not show that it acted with substantial justification or that other circumstances make the imposition of the sanction unjust. The court thus must grant Plaintiff Galasso’s request for sanctions. Plaintiff Galasso shall give notice of these rulings.
4		<u>Motions to Compel Discovery</u>

	Gobrial vs. Volkswagen Group of America, Inc. 30-2023-01329348	Pursuant to Defendant Volkswagen Group of America, Inc.'s Notice of Taking Motion to Compel Further Responses to Special Interrogatories Set One and Request for Monetary Sanctions Against Plaintiff and Plaintiff's Counsel Off Calendar filed February 26, 2024, (ROA #88), and Defendant Volkswagen Group of America, Inc.'s Notice of Taking Motion to Compel Further Responses to Requests for Admission Set One and Request for Monetary Sanctions Against Plaintiff and Plaintiff's Counsel Off Calendar filed February 26, 2024, (ROA #90), these matters are taken OFF CALENDAR.
5	Hughes vs. Hughes 30-2022-01239731	<u>Motion for Reconsideration</u> <u>Motion for Reconsideration</u> Plaintiff Albert Hughes III's Motion for Reconsideration Regarding Court's Ruling to Plaintiff's Motion for Peace Officer Records and Files (Pitchess) is DENIED. Plaintiff Albert Hughes III moves for reconsideration of the court's order granting in part and denying party Plaintiff Albert Hughes III's Motion for Discovery of Peace Officer Personnel Records pursuant to <i>Pitchess v. Superior Court</i> (1974) 11 Cal.3d 531. <u>Standard for Reconsideration</u> Civil Procedure Code section 1008 states that: When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may . . . make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. (Civil Proc. Code, § 1008, subd. (a), italics added.) The motion for reconsideration must be made "within 10 days after service upon the party of written notice of entry of the order". (<i>Ibid.</i>) In addition, a party may only seek reconsideration "based upon new or different facts, circumstances,

	or law.” (<i>Ibid.</i>) Thus, a court acts in excess of jurisdiction when it grants a motion to reconsider that is not based upon “new or different facts, circumstances or law.” (<i>Gilberd v. AC Transit</i> (1995) 32 Cal.App.4th 1494, 1499.) However, “[a] rule that would allow the reopening of cases previously decided, simply because a party identifies evidence that it could have presented at trial, but did not, would in a large measure vitiate the effects of the rules of res judicata.” (<i>In re H.S.</i> 188 Cal.App.4th 103, 108, quoting <i>Kulchar v. Kulchar</i> (1969) 1 Cal.3d 467,472.) Therefore, “the party seeking reconsideration must provide not only new evidence but also a satisfactory explanation for the failure to produce that evidence at an earlier time.” (<i>Blue Mountain Development Co. v. Carville</i> (1982) 132 Cal.App.3d 1005, 1013; see also <i>Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC</i> (2015) 61 Cal.4th 830, 833 [“A party filing a renewed application [pursuant to Section 1008] must . . . show diligence with a satisfactory explanation for not presenting the new or different information earlier”].) As the Court of Appeal has explained, this means that the “[new] information must be such that the moving party could not, with reasonable diligence, have discovered or produced it” with respect to the prior motion. (<i>New York Times Co. v. Superior Court</i> (2005) 135 Cal.App.4th 206, 212–213.) Civil Procedure Code section 1008 “is the exclusive means for modifying, amending, or revoking an order. That limitation is expressly jurisdictional.” (<i>Gilberd v. AC Transit, supra</i>, 32 Cal.App.4th at p. 1499.) <u>New Facts, Circumstances, or Law</u> Plaintiff contends that there are several new facts that support the court reconsidering its prior ruling. These are: • At the September 25, 2023 hearing, Plaintiff stated that he was unaware of the entirety of what was in Defendant Albert Hughes Jr.’s Los Angeles Sheriff’s Department (LASD) personnel file. (See Declaration of Albert Hughes III, Esq.
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		(Hughes Decl.), ¶ 4.) Plaintiff contends that this statement may have been misconstrued to mean that he was unaware of the contents of Defendant's file. • Plaintiff declares that he is Defendant's son and has personal knowledge that the Defendant has had complaints of excessive force and sexual abuse complaints against him. Plaintiff also has personal knowledge that the LASD Internal Affairs Department has investigated and punished Defendant for various complaints. (See Hughes Decl., ¶ 4.) • Plaintiff has a reasonable belief that Defendant's LASD personnel file contains information showing a lack of credibility, falsifying police reports, prior acts involving moral turpitude, and information showing illegal detentions, arrests, searches, and seizures. (See Hughes III Decl., ¶ 4.) These facts do not qualify as "new" under Civil Procedure Code section 1008. Plaintiff fails to provide a "satisfactory explanation for the failure to produce that evidence at an earlier time" nor does he explain why, he "could not with reasonable diligence, have discovered or produced" this evidence at the time of the original motion. As Plaintiff asserts, he has personal knowledge of this information and thus, could have been expected to present it at the first possible date. In addition, Plaintiff provides this new information in a general, conclusory manner without providing any supporting facts or details. The documents attached to Plaintiff's declaration do not squarely support the assertions made in Plaintiff's declaration. The Los Angeles County Sheriff's Department shall give notice of this ruling.
6	M.V. Partners vs. Spectra Yoga, LLC 30-2022-01254798	<u>Motions to Compel Discovery</u> Plaintiff M.V. Partners' Motion to Compel Response to Post Judgment Debtor Written Interrogatories Against Defendant Aileen Pham is GRANTED.

		Plaintiff M.V. Partners' Motion to Compel Response to Post Judgment Debtor Request for Documents Against Defendant Aileen Pham is GRANTED. Defendant Aileen Pham is ORDERED to serve full, complete, and verified responses to Post Judgment Debtor Written Interrogatories (Set One), without objections, within 30 days of service of the notice of ruling. Defendant Aileen Pham is ORDERED to serve full, complete, and verified responses and responsive documents to the Post Judgment Debtor Request for Documents (Set One), without objections, within 30 days of service of the notice of ruling. Defendant Aileen Pham is ORDERED to pay to Plaintiff M.V. Partners sanctions in the amount of \$1,432.50 (3.5 hours x \$375 per hour in reasonable attorney's fees and \$120 in motion filing fees) within 30 days of service of the notice of ruling. Plaintiff and Judgment Creditor M.V. Partners moves to compel Defendant and Judgment Debtor Aileen Pham to serve responses to the Post Judgment Debtor Written Interrogatories (Set One) and to serve responses and responsive documents to the Post Judgment Debtor Request for Documents (Set One). <u>Standard to Compel Responses to Post-Judgment Interrogatories</u> A judgment creditor who has obtained a judgment "may propound written interrogatories to the judgment debtor . . . requesting information to aid in enforcement of the money judgment" in the manner provided by the Civil Discovery Act, Civil Procedure Code section 2030.010, <i>et seq.</i> (Code Civ. Proc., § 708.020, subd. (a).) "The judgment debtor shall answer the interrogatories in the manner and within the time provided by" the Civil Discovery Act, Civil Procedure Code section 2030.010, <i>et seq.</i> (<i>Ibid.</i>) In addition, post-judgment interrogatories may be enforced in the same manner as interrogatories in a civil action. (Code Civ. Proc., § 708.020, subd. (a).) In a civil action, when a party properly propounds interrogatories and the party receiving the
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		interrogatories fails to respond, “[t]he party propounding the interrogatories may move for an order compelling response to the interrogatories.” (Code Civ. Proc., § 2030.290, subd. (b).) Further, when the party receiving the discovery requests fails to respond, the propounding party is not required to file a meet and confer declaration prior to filing its motion to compel, and there is no time limit for the propounding party to file its motion. (<i>Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants</i> (2007) 148 Cal.App.4th 390, 404.) “The party to whom the interrogatories are directed waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product” (Code Civ. Proc., § 2030.290, subd. (a).) <u>Standard to Compel Responses to Post-Judgment Requests for Production</u> A judgment creditor who has obtained a judgment “may demand that any judgment debtor produce and permit the party making the demand, or someone acting on that party's behalf, to inspect and to copy a document that is in the possession, custody, or control of the party on whom the demand is made . . . if the demand requests information to aid in enforcement of the money judgment.” (Code Civ. Proc., § 708.030, subd. (a).) The request for production shall be made in the same manner as provided by the Civil Discovery Act, Civil Procedure Code section 2031.010, <i>et seq.</i> (<i>Ibid.</i>) “The judgment debtor shall respond and comply with the demand in the manner and within the time” provided by the Civil Discovery Act, Civil Procedure Code section 2031.010, <i>et seq.</i> (<i>Ibid.</i>) In addition, post-judgment interrogatories may be enforced in the same manner as requests for production in a civil action. (Code Civ. Proc., § 708.030, subd. (c).) In a civil action, when a party properly propounds requests for production and the party receiving
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		the requests fails to respond, “[t]he party making the demand may move for an order compelling response to the demand.” (Code Civ. Proc., § 2031.300, subd. (b).) As with interrogatories, when a party fails to respond to valid requests for production, the propounding party is not required to file a meet and confer declaration prior to filing its motion to compel, and there is no time limit for the propounding party to file its motion. (<i>Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants</i> (2007) 148 Cal.App.4th 390, 404.) In addition, “[t]he party to whom the demand for inspection, copying, testing, or sampling is directed waives any objection to the demand, including one based on privilege or on the protection for work product” (Code Civ. Proc., § 2031.300, subd. (a).) <u>Post-Judgment Written Interrogatories</u> On June 16, 2023, Plaintiff M.V. Partners obtained a default judgment against Defendants Spectra Yoga, LLC dba Spectra Yoga, Aileen Pham, and Aileen Pham, in the amount of \$354,380.47. (ROA #36; Decl. of Ernie Zachary Park (Park. Decl.), ¶ 5.) Therefore, Plaintiff is a judgment creditor and Defendant Aileen Pham is a judgment debtor to whom Civil Procedure Code section 708.020 apply. Plaintiff presented evidence that, on July 30, 2023, Plaintiff served on Defendant Aileen Pham the Post Judgment Debtor Written Interrogatories (Set One). (Park Decl., ¶ 6, Exh. 2.) Plaintiff also submitted evidence that, as of October 12, 2023, Defendant Aileen Pham had not served responses. (<i>Id.</i>, ¶ 7.) Nor is there evidence that Defendant Aileen Pham served responses to the Post Judgment Debtor Written Interrogatories (Set One) after October 12, 2023. Further, Defendant Aileen Pham did not file an opposition or a response, and has waived any arguments on this issue. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue]; see also <i>Wright v. Fireman’s Fund Ins. Companies</i> (1992) 11 Cal.App.4th 998, 1011 [“it is clear that a defendant may waive the right to raise an issue on
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		appeal by failing to raise the issue in the pleadings or in opposition to a . . . motion”].) The court will grant the motion and order that responses be served with respect to the Post Judgment Debtor Written Interrogatories (Set One) served on Defendant Aileen Pham. <u>Post-Judgment Requests for Production</u> Plaintiff also presented evidence that, on July 30, 2023, Plaintiff served on Defendant Aileen Pham the Post Judgment Debtor Request for Documents (Set One). (Park Decl., ¶ 6, Exh. 2.) In addition, Plaintiff submitted evidence that, as of October 12, 2023, Defendant Aileen Pham had not served responses. (<i>Id.</i>, ¶ 8.) Nor is there evidence that Defendant Aileen Pham served responses to the subject discovery requests after October 12, 2023. Further, Defendant Aileen Pham did not file an opposition or a response, and has waived any arguments on this issue. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue]; see also <i>Wright v. Fireman’s Fund Ins. Companies</i> (1992) 11 Cal.App.4th 998, 1011 [“it is clear that a defendant may waive the right to raise an issue on appeal by failing to raise the issue in the pleadings or in opposition to a . . . motion”].) The court will grant the motion and order that responses be served with respect to the Post Judgment Debtor Request for Documents (Set One) served on Defendant Aileen Pham. <u>Sanctions</u> The Civil Procedure Code requires the court to impose monetary sanctions against a party, person, or attorney who unsuccessfully makes or opposes a motion to compel “unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., §§ 2030.290, subd. (c); Code Civ. Proc., §§ 2031.300, subd. (c).) California Rules of Court rule 3.1348(a) further provides that “[t]he court may award sanctions
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		under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” (Cal. Rules of Court, rule 3.1348(a). Defendant Aileen Pham did not oppose or respond to either of the instant motions and, thus, has not provided any substantial justification or pointed to any circumstances that would make the imposition of sanctions unjust. However, some of the attorney’s fees requested as sanctions are unnecessary in light of the fact that Plaintiff did not incur any attorney’s fees to review an opposition or prepare a reply. The court will reduce the amount of sanctions accordingly. Plaintiff shall give notice of this ruling.
7	Mejico vs. Newland Garden Apartments, L.P. 30-2023-01337727	<u>Motion to Quash</u> Pursuant to the Notice of Withdrawal of Motion to Quash Service of Summons and Complaint filed December 21, 2023, (ROA 35), this matter is taken OFF CALENDAR.
8	National Funding, Inc. vs. Hard Rock Exteriors LLC 30-2023-01334334	<u>Motion for Summary Judgment</u> Plaintiff National Funding, Inc.’s Motion for Summary Judgment is GRANTED. The court ORDERS that judgment shall be entered in favor of Plaintiff National Funding, Inc. and against Defendant Hard Rock Exteriors LLC dba Nu Normal as to the 1st Cause of Action of the Complaint in the amount of \$374,191.91 plus any prejudgment interest, reasonable attorney’s fees, and costs allowed by law. The court ORDERS that judgment shall be entered in favor of Plaintiff National Funding, Inc. and against Defendant Robert Bitz as to the 2nd Cause of Action of the Complaint in the sum of \$374,191.91 plus any prejudgment interest, reasonable attorney’s fees, and costs allowed by law.

		Plaintiff National Funding, Inc. shall prepare a proposed judgment and serve it on Defendants Hard Rock Exteriors LLC dba Nu Normal and Robert Bitz, and submit it to the court pursuant to Rules of Court Rule 3.1590(h). The Court FINDS good cause to allow Plaintiff National Funding, Inc. 30 days from the date of this ruling to prepare, serve, and submit the proposed judgment. Defendants Hard Rock Exteriors LLC's and Robert Bitz's evidentiary objections to the Declaration of Sandra Otero are OVERRULED as to evidentiary objection numbers 1-4. Plaintiff National Funding, Inc. moves for summary judgment as to the 1st Cause of Action of the Complaint for Breach of Contract against Defendant Hard Rock Exteriors LLC dba Nu Normal (Defendant Hard Rock) and as to the 2nd Cause of Action of the Complaint for Breach of Guaranty against Defendant Robert Bitz (Defendant Bitz). <u>Standard for Summary Judgment</u> "Summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc., § 437c, subd. (c).) A "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact" (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) "A prima facie showing is one that is sufficient to support the position of the party in question." (<i>Id.</i> at 851.) A plaintiff moving for summary judgment satisfies the initial burden by submitting undisputed evidence "showing that there is no defense to a cause of action [because] the party has proved each element of the cause of action entitling the party to judgment on the cause of action." (Code Civ. Proc. § 437c, subd. (p)(1).) On the other hand, "[i]f the plaintiff is unable to meet her burden of proof regarding an essential element of her case, all other facts are rendered immaterial." (<i>Saelzler v. Advanced Group 400</i> (2001) 25 Cal.4th 763, 780, quoting <i>Leslie G. v.</i>
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		<i>Perry & Associates</i> (1996) 43 Cal.App.4th 472, 482.) If the moving party meets its burden, the burden then shifts to the party opposing summary judgment to show, by reference to specific facts, the existence of a triable, material issue as to a cause of action or an affirmative defense. (<i>Aguilar v. Atlantic Richfield Co.</i>, <i>supra</i>, 25 Cal.4th at p. 855; <i>Villacres v. ABM Industries, Inc.</i> (2010) 189 Cal.App.4th 562, 575.) The nonmoving party must present substantial evidence in order to avoid summary judgment. (<i>Sangster v. Paetkau</i> (1998) 68 Cal.App.4th 151, 163.) "In some instances . . ., 'evidence may be so lacking in probative value that it fails to raise any triable issue.'" (<i>Whitmire v. Ingersoll-Rand Co.</i> (2010) 184 Cal.App.4th 1078, 1083-1084, quoting <i>Advanced Micro Devices, Inc. v. Great American Surplus Lines Ins. Co.</i> (1988) 199 Cal.App.3d 791, 795.) When the moving party has met its initial burden and the responding party fails to file an opposition or establish a triable issues of material fact, the court may grant summary judgment or summary adjudication. (<i>Tire Distributors, Inc. v. Cobrae</i> (2005) 132 Cal.App.4th 538, 543.) Summary judgment is no longer disfavored. The Supreme Court has confirmed that the purpose of the 1992 and 1993 amendments to the summary judgment statute was "'to liberalize the granting of [summary judgment] motions.'" (<i>Perry v. Bakewell Hawthorne, LLC</i> (2017) 2 Cal.5th 536, 542, quoting <i>Aguilar v. Atlantic Richfield Co.</i>, <i>supra</i>, 25 Cal.4th at p. 848.) "Summary judgment is now seen as a 'particularly suitable means to test the sufficiency' of the plaintiff's or defendant's case." (<i>Ibid.</i>, quoting <i>Caldwell v. Paramount Unified School Dist.</i> (1995) 41 Cal.App.4th 189, 203.) Nonetheless, in ruling on a motion for summary judgment or summary adjudication, "the court must 'consider all of the evidence' and 'all' of the 'inferences' reasonably drawn therefrom, and must view such evidence and such inferences in the light most favorable to the opposing party." (<i>Aguilar v. Atlantic Richfield Co.</i>, <i>supra</i>, 25 Cal.4th at p. 843, citations omitted.) Courts "'construe the moving party's affidavits strictly, construe the
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		opponent's affidavits liberally, and resolve doubts about the propriety of granting the motion in favor of the party opposing it.'" (<i>Unilab Corp. v. Angeles-IPA</i> (2016) 244 Cal.App.4th 622, 636, quoting <i>Seo v. All-Makes Overhead Doors</i> (2002) 97 Cal.App.4th 1193, 1201–1202.) A court may not make credibility determinations or weigh the evidence on a motion for summary judgment or adjudication, and all evidentiary conflicts are to be resolved against the moving party. (<i>McCabe v. American Honda Motor Corp.</i> (2002) 100 Cal.App.4th 1111, 1119.) "The court . . . does not resolve issues of fact. The court seeks to find contradictions in the evidence, or inferences reasonably deducible from the evidence, which raise a triable issue of material fact." (<i>Johnson v. United Cerebral Palsy/Spastic Children's Foundation of Los Angeles and Ventura Counties</i> (2009) 173 Cal.App.4th 740, 754, citation omitted.) "[S]ummary judgment cannot be granted when the facts are susceptible [of] more than one reasonable inference . . ." (<i>Rosas v. BASF Corp.</i> (2015) 236 Cal.App.4th 1378, 1392.) <u>1st Cause of Action (Breach of Contract) and 2nd Cause of Action (Breach of Guaranty)</u> "[T]he elements of a cause of action for breach of contract are (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff." (<i>Oasis West Realty, LLC v. Goldman</i> (2011) 51 Cal.4th 811, 821) In addition, "[a] lender is entitled to judgment on a breach of guaranty claim based upon undisputed evidence that (1) there is a valid guaranty, (2) the borrower has defaulted, and (3) the guarantor failed to perform under the guaranty." (<i>Gray1 CPB, LLC v. Kolokotronis</i> (2011) 202 Cal.App.4th 480, 486.) 1. The Existence of a Contract and a Guaranty: Plaintiff presents evidence that on or about January 10, 2023, Plaintiff and Defendant Hard Rock entered into a written Business Loan Agreement, whereby Hard Rock received a \$300,000.00 loan and was required to repay the loan in 52 weekly payments of
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		\$7,961.53. (See Decl. of Sandra Otero in Supp. of Pltf.'s Mot. for Summ. Judgment (Otero Decl.), ¶ 4, Exh. 1.) Plaintiff also submitted evidence that, on the same day, Defendant Bitz entered into a guaranty by which he unconditionally guaranteed the loan to Defendant Hard Rock. (See Otero Decl., ¶ 5, Exh. 1.) 2. Plaintiff's Performance or Excuse for Nonperformance: Plaintiff showed by its evidence that it had performed all conditions and promises required under the Business Loan Agreement and guaranty, including the deposit of all monies required under the terms of the Business Loan Agreement into Defendant Hard Rock's bank account. (See Otero Decl., ¶ 9.) 3. Defendants' Breach: Plaintiff also presented evidence that Defendant Hard Rock defaulted on the Business Loan Agreement on or about February 22, 2023, and that Defendant Bitz defaulted on the guaranty, as both failed to make the required payments under the Business Loan Agreement and guaranty. (See Otero Decl., ¶¶ 6-8, Exh. 2..) 4. Resulting Damages: Plaintiff showed that it had suffered damages of \$374,191.91 as a result of Defendant Hard Rock's and Defendant Bitz's breaches. (See Otero Decl., ¶ 8, Exh. 2..) Therefore, Plaintiff has met its initial burden of making a <i>prima facie</i> showing of the non-existence of any triable issue of material fact as to the 1st and 2nd Causes of Action. The burden then shifts to Defendants to show, by reference to specific facts and substantial evidence, the existence of a triable, material issue as to a cause of action or an affirmative defense. However, Defendants do not point to any specific facts nor do they provide any substantial evidence to show that there is a triable, material issue as to the 1st or 2nd Causes of Action.
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		<u>Objections</u> Instead, Defendants rely on their objections to Paragraphs 4-6 and 8, as well as Exhibits 1 and 2, of the Declaration of Sandra Otero and argue that the declaration should be disregarded. Specifically, Defendants assert objections on the basis of: (1) lack of foundation, (Evid. Code, § 403), (2) best evidence rule, (Evid. Code, § 1523, subd. (a)), (3) hearsay, (Evid. Code, § 1200), and (4) "conclusory". In her declaration, Ms. Otero states that she is the Chief Credit Officer for Plaintiff and has "full access to and am one of the custodians of records kept by [Plaintiff]." (Otero Decl., ¶ 2.) In addition, the Business Loan Agreement and guaranty were signed by Ms. Otero on Plaintiff's behalf. (See Otero Decl., Exh. 1 at p. 11.) This directly contradicts Defendants' argument, in support of their objections, that Ms. Otero "was not present at the loan signing". Ms. Otero therefore has the proper foundation to testify about the Business Loan Agreement and guaranty, Defendants' default, and Defendants' payment history and Plaintiff's damages. The court overrules the lack of foundation objection. The best evidence rule states that "oral testimony is not admissible to prove the content of a writing." (Evid. Code, § 1523, subd. (a).) However, Ms. Otero's testimony is not being used to prove the content of a writing, but to lay a foundation for the writing. The writings in question in this case – the Business Loan Agreement, the guaranty, and Defendants' payment history – are, in fact, attached to Ms. Otero's declaration. The court overrules the best evidence rule objection. Although hearsay generally is inadmissible, this does not apply to business records that meet the requirements of Evidence Code section 1271. These requirements are: (a) The writing was made in the regular course of a business; (b) The writing was made at or near the time of the act, condition, or event;
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		(c) The custodian or other qualified witness testifies to its identity and the mode of its preparation; and (d) The sources of information and method and time of preparation were such as to indicate its trustworthiness. (Evid. Code, § 1271.) Ms. Otero’s declaration shows that each of these requirements is met. (See Otero Decl., ¶¶ 2-3; see also <i>Wicks v. Antelope Valley Healthcare District</i> (2020) 49 Cal.App.5th 866, 876 [declaration by custodian of records sufficient to establish business records described in Evidence Code section 1271]; <i>Thompson v. Machado</i> (1947) 78 Cal.App.2d 870, 873 [under the business records exception to the hearsay rule, “it is not necessary that the person making the entry have personal knowledge of the transaction”].) The court overrules the hearsay objection on the basis of the business records exception. (fn.1) (fn.1) Evidence Code section 1271 also creates an exception to the best evidence rule. (See <i>People v. Hernandez</i> (1997) 55 Cal.App.4th 225, 239-240 [data may be properly admitted as business record, such that the best evidence rule will not foreclose the admission of said data].) Defendants also argues that Ms. Otero makes “the conclusory statements that Borrower entered into the agreement and that Exhibit 1 is a true and correct copy” and “the conclusory statements that Guarantor ‘unconditionally agreed to guaranty in writing all the obligations and duties of Borrower under the Loan Agreement’ and that Exhibit 1 is a true and correct copy.” However, as stated above, Ms. Otero’s positions and access to the records, as well as the fact that she signed the Business Loan Agreement and guaranty on behalf of Plaintiff, ensure that the proper foundation has been laid. These are not conclusory statements but the testimony of someone with personal knowledge of the facts. Defendants object to Exhibit 2 on the ground that the document “is not dated, has a bare minimum of identifying information, and appears to have been created only for the purposes of this litigation.”
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		However, Exhibit 2 is admissible as a business record and Ms. Otero has attested it is a true and correct copy of the borrower's loan payment history, which catalogs the borrower's completed and outstanding payments under the loan agreement. (See Otero Decl., ¶ 8.) None of the alleged deficiencies in the document change the fact that it is admissible. Further, Defendants have provided no evidence to support the assertion that the document was "created only for the purposes of this litigation." In their Opposition, Defendants cite to cases from federal 3rd Circuit and 11th Circuit for the proposition that Ms. Otero's declaration does not satisfy the personal knowledge requirement, and to cases from the 1st Circuit and 10th Circuit to support their contention that Ms. Otero's declaration does not lay out admissible evidence. However, federal procedural and evidentiary rules do not apply in state courts, and such rules cannot make inadmissible evidence that is admissible under the statutory and case law of this state. (See <i>Estate of Murphy</i> (1979) 92 Cal.App.3d 413, 426.) Plaintiff has met its initial burden on summary judgment and Defendants have failed to establish any triable issues of material fact as to the 1st or 2nd Causes of Action. The court therefore will grant summary judgment. Plaintiff shall give notice of this ruling.
9	Phillips vs. Nesbit 30-2022-01284894	<u>Motion for Leave to Amend</u> Plaintiffs Thomas Phillips'; Fashion Island Surgery Center, LLC's; and Thomas J. Phillips, M.D.'s Motion for Leave to File Fourth Amended Complaint is GRANTED. Plaintiffs Thomas Phillips; Fashion Island Surgery Center, LLC; and Thomas J. Phillips, M.D. shall file and serve the Fourth Amended Complaint by March 8, 2024. Defendant Alan Nesbit is GRANTED leave to file a demurrer and/or a motion to strike with respect to the Fourth Amended Complaint using the same

	reservation number as Defendant’s demurrer and motion to strike that are currently pending. As long as any demurrer and/or a motion to strike with respect to the Fourth Amended Complaint is filed and served in compliance with the Civil Procedure Code, they may be heard on May 20, 2024 at 8:30 a.m. in Department N15. Plaintiffs Thomas Phillips; Fashion Island Surgery Center, LLC; and Thomas J. Phillips, M.D. move for leave to file a Fourth Amended Complaint. <u>Standard for Leave to Amend</u> The Civil Procedure Code provides that: The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code. (Code Civ. Proc., § 473, subd. (a)(1).) Leave to amend should be granted liberally at all stages of the proceedings in order to accomplish substantial justice for both parties and to resolve cases on their merits. (See <i>Hirsa v. Superior Court</i> (1981) 118 Cal.App.3d 486, 488-489; <i>IMO Development Corp. v. Dow Corning</i> (1982) 135 Cal.App.3d 451, 461.) As the Court of Appeal has explained: [T]rial courts should be guided by two general principles: (1) whether facts or legal theories are being changed and (2) whether the opposing party will be prejudiced by the proposed amendment. Frequently, each principle represents a different side of the same coin: If new facts
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		are being alleged, prejudice may easily result because of the inability of the other party to investigate the validity of the factual allegations while engaged in trial or to call rebuttal witnesses. If the same set of facts supports merely a different theory – for example, an easement as opposed to a fee – no prejudice can result. (<i>City of Stanton v. Cox</i> (1989) 207 Cal.App.3d 1557, 1563.) With respect to the first requirement, “[t]he basic rule applicable to amendments to conform to proof is that the amended pleading must be based upon the same general set of facts as those upon which the cause of action or defense as originally pleaded was grounded.” (<i>Union Bank v. Wendland</i> (1976) 54 Cal.App.3d 393, 400-401.) In other words, “[t]he power to permit amendments is interpreted very liberally as long as the plaintiff does not attempt to state facts which give rise to a wholly distinct and different legal obligation against the defendant.” (<i>Herrera v. Superior Court</i> (1984) 158 Cal.App.3d 255, 259.) Prejudice that may support denying amendment includes “delay in trial, loss of critical evidence, or added costs of preparation.” (<i>Solit v. Tokai Bank, Ltd. New York Branch</i> (1999) 68 Cal.App.4th 1435, 1448.) However, it is “an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.” (<i>Kittredge Sports Co. v. Superior Court</i> (1989) 213 Cal.App.3d 1045, 1048; see also <i>Morgan v. Superior Court</i> (1959) 172 Cal.App.2d 527, 530 [“If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend”], citations and quotations omitted.) It is also an abuse of discretion to refuse amendment where that “results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense.” (<i>Morgan v. Superior Court, supra</i>, 172 Cal.App.2d at p. 530.) This is true even if leave to amend is sought as late as the time of trial or even during trial. (See <i>Higgins v. Del Faro</i> (1981) 123 Cal.App.3d 558, 564-565; <i>Rainer v. Community Memorial Hosp.</i> (1971)
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		18 Cal.App.3d 240, 251-256.) Thus, "[i]n the furtherance of justice, trial courts may allow amendments to pleadings and if necessary, postpone trial." (<i>Honig v. Financial Corp. of America</i> (1992) 6 Cal.App.4th 960, 965.) Pursuant California Rules of Court rule 3.1324(a), a motion to amend a pleading shall: (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. In addition, California Rules of Court rule 3.1324(b) requires that a separate declaration accompany the motion and must specify (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. <u>Proposed Amendment</u> On September 18, 2023, the court sustained with leave to amend Defendant Alan Nesbit's demurrer to the 1st Cause of Action for legal malpractice and 4th Cause of Action for breach of fiduciary duty of the Second Amended Complaint. (See ROA #69.) On September 27, 2023, Plaintiffs filed an Third Amended Complaint with a 1st Cause of Action for legal malpractice and a 2nd Cause of Action for breach of contract. (See ROA #73.) Defendant then filed a motion to strike the 2nd Cause of Action on the basis that adding a new cause of action for breach of contract was not within the court's leave to amend. (See ROA #75.) Plaintiffs now seek leave to file a Fourth Amended Complaint that adds the 2nd Cause of Action for breach of contract. In the 2nd Cause of Action, Plaintiffs allege that the parties entered into an independent contractor agreement on June 11,
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		2020, which Defendant breached by not procuring malpractice insurance. The 2nd Cause of Action of the Fourth Amended Complaint looks to the same set of core facts as the prior complaints – namely, Defendant’s legal representation of the Plaintiffs in the lawsuit against Carolina Brown, Mark Plummer, and the Law Offices of Mark Plummer. Plaintiffs seek only to add another legal theory upon which to seek compensation. Plaintiffs also note that Defendant will suffer no prejudice. The discovery burden will not substantially increase as the 2nd Cause of Action does not rely on a different set of facts. In addition, Defendant was apprised of the potential for the 2nd Cause of Action 5 months ago, when Plaintiffs filed the Third Amended Complaint and trial will not occur for another 8 ½ months. Thus, there has been no showing that the amendment will cause any delay in the trial. Defendant argues that the court should deny the leave to amend by arguing the sufficiency and validity of the proposed amended pleadings. These arguments are premature. After leave to amend is granted, Defendant may attack the amended pleadings on the merits. (See <i>Kittredge Sports Co. v. Superior Court</i> (1989) 213 Cal.App.3d 1045, 1048.) Defendant does not make any other arguments in opposition to the motion for leave to amend. Therefore the court will grant the motion. (fn.1) (fn.1) Plaintiffs have not complied with California Rules of Court, rule 3.1324. While the motion for leave to amend does identify the allegations that are proposed to be deleted or added, the supporting declaration does not state why the amended allegations are necessary and proper, when the facts giving rise to the amended allegations were discovered, and the reason for the delay in adding the 2nd Cause of Action. Further, Plaintiffs’ moving papers and reply papers do not contain a proof of service. However, Defendant does not take issue with these deficiencies or show that it was prejudiced by them. The court therefore finds these requirements were waived but encourages
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		Plaintiffs to carefully review all procedural requirements in the future. In order to avoid further delay in this case, the court will grant leave for Defendant to file a demurrer and/or a motion to strike with respect to the Fourth Amended Complaint that use(s) the same reservation number(s) as Defendant's demurrer and motion to strike that are currently pending. This will allow Defendant's demurrer and/or a motion to strike with respect to the Fourth Amended Complaint to be heard on the date of the pending demurrer and motion to strike – May 20, 2024 – as long as Defendant's demurrer and/or a motion to strike with respect to the Fourth Amended Complaint are filed and served in compliance with the Civil Procedure Code. Plaintiffs shall give notice of this ruling.
10	Torres vs. Fountain Valley Regional Hospital and Medical Center 30-2023-01311157	<u>Demurrer</u> Defendant Fountain Valley Regional Hospital and Medical Center's Demurrer to the First Cause of Action for Elder Abuse Contained in Plaintiff's First Amended Complaint is OVERRULED. Defendant Fountain Valley Regional Hospital and Medical Center shall file an answer or other pleading in response to the First Amended Complaint within 10 days of service of the notice of ruling. (See Cal. Rules of Ct. rule 3.1320(j).) Defendant Fountain Valley Regional Hospital and Medical Center (Defendant Hospital) demurs to the 1st Cause of Action for Elder Abuse of the First Amended Complaint (FAC) filed by Plaintiff Maria Guadalupe Torres. <u>Standard for Demurrer</u> In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.)

		Questions of fact cannot be decided on demurrer. (<i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (<i>Hall v. Great W. Bank</i> (1991) 231 Cal.App.3d 713, 718, fn.7.) Although courts should take a liberal view of inartfully drawn complaints, (see Code Civ. Proc., § 452), it remains essential that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what plaintiff is complaining, and what remedies are being sought, (<i>Leek v. Cooper</i> (2011) 194 Cal.App.4th 399, 413). Bare conclusions of law devoid of any facts are insufficient to withstand demurrer. (<i>Schmid v. City and County of San Francisco</i> (2021) 60 Cal.App.5th 470, 481; see Code Civ. Proc., § 425.10, subd. (a).) <u>1st Cause of Action (Elder Abuse)</u> A cause of action brought under the Elder Abuse Act (Act), Welfare and Institutions Code §§ 15600, <i>et seq.</i>, allows the plaintiff to seek certain enhanced remedies when the plaintiff proves: 1) “by clear and convincing evidence” that 2) “defendant is liable for physical abuse as defined in Section 15610.63, neglect as defined in Section 15610.57, or abandonment as defined in Section 15610.05,” and that 3) the defendant committed the abuse with “recklessness, oppression, fraud, or malice.” (Welf. & Inst. Code, § 15657, subd. (a).) The rule that “statutory causes of action must be pleaded with particularity” applies to claims made under the Elder Abuse Act. (<i>Covenant Care, Inc. v. Superior Court</i> (2004) 32 Cal.4th 771, 790.) <u>Neglect</u> The Act defines “neglect” to mean “[t]he negligent failure of any person having the care or custody of an elder or a dependent adult to exercise that degree of care that a reasonable person in a like position would exercise.” (Welf. & Inst. Code, § 15610.57 subd. (a)(1); see also Welf. & Inst. Code, § 15610.27 [defining “elder” as “person residing in this state, 65 years of age or older”].)
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		Examples of neglect include, but are not limited to, the following: (1) Failure to assist in personal hygiene, or in the provision of food, clothing, or shelter. (2) Failure to provide medical care for physical and mental health needs. A person shall not be deemed neglected or abused for the sole reason that the person voluntarily relies on treatment by spiritual means through prayer alone in lieu of medical treatment. (3) Failure to protect from health and safety hazards. (4) Failure to prevent malnutrition or dehydration. (Welf. & Inst. Code § 15610.57, subd. (b).) <u>Care or Custody</u> As an initial matter, Section 15610.57(a)(1) requires that, for there to be neglect, the plaintiff must have been under the “care or custody” of the defendant. The Supreme Court has held that this requires plaintiff to prove “the existence of a robust caretaking or custodial relationship — that is, a relationship where a certain party has assumed a significant measure of responsibility for attending to one or more of an elder’s basic needs that an able-bodied and fully competent adult would ordinarily be capable of managing without assistance.” (<i>Winn v. Pioneer Medical Group, Inc.</i> (2016) 63 Cal.4th 148, 158.) This means that “the distinctive relationship contemplated by the Act entails more than casual or limited interactions.” (<i>Ibid.</i>) In determining whether such a relationship exists, “the focus . . . is on the nature and substance of the relationship between an individual and an elder or a dependent adult.” (<i>Ibid.</i>) The court noted that the “defendant’s professional standing or expertise” was not as important as whether “an elder or dependent adult depends on another for the provision of some or all of his or her
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		fundamental needs” or “the defendant[] had explicitly assumed responsibility for attend to the elders’ basic needs.” (<i>Id.</i> at pp. 158-160.) The FAC alleges that Defendants are liable for Elder Abuse because they neglected the Plaintiff, even though they were “care custodians” for the Plaintiff. (See, e.g., FAC, ¶¶ 12-13.) Defendants contend that this cause of action fails because the FAC does not sufficiently plead a robust caretaking or custodial relationship. Here, the FAC alleges that “[Defendants were to provide ‘care or services’ to dependent adults and the elderly, including [Plaintiff] and were to be the ‘care custodians’ of Plaintiff . . . and in a trust and fiduciary relationship with [Plaintiff] and upon whom [Plaintiff] depended in the manner and degree hereinafter alleged for the performance of their custodial duties.” (FAC, ¶ 12.) The FAC asserts that Plaintiff was under Defendant Hospital’s care for at least five days, during which there was a skin integrity care plan that required Defendant Hospital to monitor Plaintiff’s skin for redness and breakdowns at least twice a day; reposition Plaintiff’s at least every two hours; and report, notate, and document Plaintiff’s medical issues. (See FAC, ¶¶ 16-19.) The FAC also pleads that Defendant Hospital “knew that due to [Plaintiff’s] physical condition, she was unable to provide for her own basic needs and was dependent on them for meeting her basic needs such as nutrition, hydration, as well as medical care and health services, assistance and monitoring with feeding, the provision of safety and assistance devices to prevent accidents, and the implementation of interventions to prevent skin breakdown and infections.” (FAC, ¶ 29.) The FAC sufficiently pleads that Plaintiff was in the “care or custody” of Defendant Hospital, that Plaintiff depended on Defendant Hospital for the provision of some or all of her fundamental needs, and that Defendant Hospital had explicitly assumed responsibility for attend to Plaintiff’s basic needs. <u>Professional Negligence Not Sufficient</u> The Supreme Court has reviewed the purposes and legislative history of Section 15657 and
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		determined that “the statute was not meant to encompass every course of behavior that fits either legal or colloquial definitions of neglect.” (<i>Winn v. Pioneer Medical Group, Inc.</i> (2016) 63 Cal.4th 148, 160.) Instead, the Act seeks to guard against “certain situations [that] place elders and dependent adults at heightened risk of harm” and for which “heightened remedies relative to conventional tort remedies are appropriate as a consequence.” (<i>Id.</i> at pp. 160-161; see also <i>Delaney v. Baker</i> (1999) 20 Cal.4th 23, 36-37.) Therefore, “neglect [as a form of abuse under the Act] refers not to the substandard performance of medical services but, rather, to the ‘failure of those responsible for attending to the basic needs and comforts of elderly or dependent adults, regardless of their professional standing, to carry out their custodial obligations.’” (<i>Covenant Care, Inc. v. Superior Court, supra</i>, 32 Cal.4th at p. 783, quoting <i>Delaney v. Baker, supra</i>, 20 Cal.4th at p. 34.) “Thus, the statutory definition of ‘neglect’ speaks not of the <i>undertaking</i> of medical services, but of the failure to <i>provide</i> medical care.” (<i>Covenant Care, Inc. v. Superior Court, supra</i>, 32 Cal.4th at p. 783, italics original.) In addition, “[t]o recover the enhanced remedies under the Elder Abuse Act from a health care provider, a plaintiff must prove more than simple or even gross negligence in the provider’s care or custody of the elder.” (<i>Carter v. Prime Healthcare Paradise Valley</i> (2011) 198 Cal.App.4th 396, 405, citations omitted.) Instead, [The plaintiff] must show reckless, oppressive, fraudulent, or malicious conduct. The latter three categories involve “intentional,” “willful,” or “conscious” wrongdoing of a “despicable” or “injurious” nature. “Recklessness” refers to a subjective state of culpability greater than simple negligence, which has been described as a “deliberate disregard” of the “high degree of probability” that an injury will occur. (<i>Delaney v. Baker, supra</i>, 20 Cal.4th at p. 31, citations omitted.) As the Supreme Court has explained, “[i]n order to obtain the Act’s heightened remedies, a plaintiff must allege conduct essentially equivalent to
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		conduct that would support recovery of punitive damages." (<i>Covenant Care, Inc. v. Superior Court</i>, <i>supra</i>, 32 Cal.4th at p. 789.) Thus, "the enhanced remedies are available only for 'acts of egregious abuse against elder and dependent adults.'" (<i>Carter v. Prime Healthcare Paradise Valley</i> (2011) 198 Cal.App.4th 396, 405, quoting <i>Delaney v. Baker</i>, <i>supra</i>, 20 Cal.4th at p. 34.) <i>Carter v. Prime Healthcare Paradise Valley</i> (2011) 198 Cal.App.4th 396 applied these principles. In that case, the decedent was treated at both a hospital and a skilled nursing facility before he passed away. (See <i>id.</i> at pp. 401-402.) The Court of Appeal affirmed the trial court's ruling sustaining the hospital's demurrer because plaintiffs had not alleged any facts to show that the hospital had neglected the decedent. (<i>Id.</i> at pp. 407-407.) The Court of Appeal held that while plaintiffs had alleged that there had been a "failure to treat [decedent's] pressure ulcers, administer prescribed antibiotics or stock the crash cart; false documentation; purposefully inadequate testing for medications," plaintiffs had not plead facts sufficient to show that any of this conduct rose to the level of neglect. (<i>Id.</i> at pp. 408-410.) The Court of Appeal also ruled that standard professional negligence was not sufficient to amount to neglect. (<i>Ibid.</i>) Defendant Hospital contends that the Elder Abuse Cause of Action fails to allege neglect with particularity and that, at most, Plaintiff alleges professional negligence and not a total failure to provide the care required by Plaintiff. The FAC alleges that "on numerous days during [Plaintiff's] hospitalization at [Defendant Hospital], [Defendant Hospital's] staff failed to inspect [Plaintiff's] skin every shift and reposition her every two hours," which caused injury, pain, and suffering to Plaintiff. (FAC, ¶¶ 20-21.) The FAC also pleads that the failure of Defendant Hospital to abide by the skin integrity care plan was a result of "deliberate understaffing at [Defendant Hospital] by its managing agents." (FAC, ¶ 22.) <i>Sababin v. Superior Court</i> (2006) 144 Cal.App.4th 81 provides guidance here. In that case, a
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		dependent adult suffering from Huntington's disease was placed in a rehabilitation center and died two months later due to a staph infection caused by a sacral skin ulcer. (<i>Id.</i> at p. 84.) The center brought a motion for summary judgment and for summary adjudication, arguing that the decedent was turned on a regular basis and that the ulcers did not develop while she was at the center. (<i>Id.</i> at pp. 86-87.) The plaintiffs presented evidence in opposition showing that the decedent's care plan required her skin to be monitored on a daily basis for redness and breakdown and that, when she was transferred from the center to a hospital, decedent had "red, squishy buttocks, a bleeding toe, and a bruised and reddened foot," none of which had been documented by the rehabilitation center. (<i>Id.</i> at p. 87.) The trial court granted the motion on the ground that plaintiff's evidence, even if believed, showed nothing more than negligence. (<i>Ibid.</i>) The Court of Appeal reversed, finding that the center's failure to follow the care plan and failure to check the skin of a resident with Huntington's could constitute "neglect" under the Act. (<i>Id.</i> at p. 90.) The Court of Appeal reasoned that the "trier of fact could find that when a care facility's employees ignore a care plan and fail to check the skin condition of a resident with Huntington's Chorea, such conduct shows deliberate disregard of the high degree of probability that she will suffer injury." (<i>Ibid.</i>) The FAC in this case alleges that Plaintiff "was unable to provide for her own basic needs and was dependent on them for meeting her basic needs." (FAC, ¶ 29.) The FAC also pleads that Defendant Hospital and its staff failed to follow Plaintiff's skin integrity care plan. (See FAC, ¶¶ 16-20.) The FAC then alleges that, as a result of Defendant Hospital's conduct, including its failure to inspect Plaintiff's skin every shift and reposition her every two hours, Plaintiff suffered from untreated ulcers near the sacrum that caused injury, pain, and suffering. (FAC, ¶¶ 21-22.) As in <i>Sababin v. Superior Court</i>, this is sufficient for a trier of fact to conclude that Defendant Hospital's conduct amounted to deliberate
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		disregard of Plaintiff's basic needs and to the failure to provide medical care. Thus, the court will overrule the demurrer. Plaintiff shall give notice of this ruling.
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